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SIERRA LEONE

Human Rights Developments

In January 1999, rebels from the Revolutionary United Front (RUF) launched an offensive against the capital Freetown, capturing it from government troops and soldiers from the Nigerian-led peacekeeping troops of the Economic Community of West Africa States (ECOWAS) Monitoring Group (ECOMOG). The battle for Freetown and ensuing three week rebel occupation of the capital was characterized by the systematic and widespread perpetration of all classes of atrocities against the civilian population, and marked the most intensive and concentrated period of human rights violations in Sierra Leone's eight-year civil war. Government and ECOMOG forces also carried out serious abuses, including over 180 summary executions of rebels and their suspected collaborators.

After withdrawing from the capital in January, the RUF continued to commit large scale violations as they moved eastward, particularly in the villages around the towns of Masiaka and Port Loko. The massive displacement of civilians fleeing the fighting and the continued attacks by the RUF led to severe shortages in food and medicines for the 2.6 million people caught behind rebel lines.

In the months following the offensive, and as a result of intense international pressure, the government and RUF rebels entered into a dialogue which resulted in a ceasefire on May 18, and on July 7 the signing of a peace accord in Lomé, Togo. The accord, brokered by the United Nations, Organization of African Unity (OAU), and ECOWAS, committed the RUF to lay down its arms in exchange for representation in a new government. It also included a general amnesty for all crimes committed during the civil war, and mandated the formation of a truth and reconciliation commission (TRC) and a national human rights commission. While a disarmament process is currently underway the peace process was marred by cease-fire violations, missed deadlines, infighting within rebel ranks, and noncompliance by the RUF with several commitments, such as the release of all civilian abductees. As of October, little progress had been made toward establishing either the TRC or the human rights commission. While mandated to be established ninety days after the signing and submit its report twelve months later, government clarified that it did not want the TRC to begin work until the process of disarmament and demobilization of ex-combatants was complete.

The January offensive brought to the capital the same atrocities witnessed in Sierra Leone's rural provinces over the last eight years, as the RUF murdered at least two thousand civilians. Victims were usually chosen at random, though there was some targeting of particular groups, such as Nigerian nationals, unarmed police officers, journalists, and church workers. The horrific practice of mutilation and, in particular amputation of hands, arms, lips, legs and other parts of the body was widespread until the signing of the Lomé peace accord. In January, the rebels cut off the limbs of some one hundred civilians, including twenty-six double arm amputations. An unknown number died before being able to receive medical attention. The rebel attacks around Masiaka and Port Loko produced at least another forty-four victims of mutilation, including seven double arm amputations. In a village near Masiaka, fifty-seven civilians were burned alive in late April.

The RUF perpetrated systematic, organized, and widespread sexual violence against girls and women. The rebels planned and launched operations in which they rounded up girls and women, brought them to rebel command centers, and then subjected them to individual and gang rape. Young girls under seventeen and particularly those deemed to be virgins were specifically targeted. While some were

later released or managed to escape, at this writing hundreds continued to be held in sexual slavery after being "married" to rebel combatants. Well over one hundred of the girls became pregnant. Numerous girl children under the age of twelve died as a result of rape.

More than 3,000 children and 570 adults were reported as missing following the January offensive. Hundreds more were abducted as they moved through the villages around Masiaka. The abductees were often subjected to hard labor, forcibly recruited into the military, and compelled to become sexual partners to male combatants. While the Lom6 peace agreement called for the immediate release of all prisoners of war and "noncombatants," the RUF had only released under one thousand of these civilians at this writing. In Freetown, Masiaka, Rogberi, and near Kenema, the rebels also made frequent use of human shields, both while advancing towards ECOMOG positions and as a defense against ECOMOG air power.

The RUF also systematically set urban dwellings and entire villages on fire as they withdrew. In Freetown, entire city blocks, embassies, government buildings, factories, churches, mosques, and historical landmarks were set alight; housing authorities registered the destruction of 5,788 homes and residential buildings. The towns of Masiaka and Songo were also set on fire as were scores of villages in their environs. There was some destruction due to indiscriminate bombing by ECOMOG jets, particularly in the northern town of Kambia.

The RUF also frustrated the delivery of humanitarian relief to the 2.6 million civilians residing in areas under rebel control, despite the provisions of the July 7 peace agreement for all sides to "guarantee safe and unhindered access by humanitarian organizations to all people in need." Once delivery began, rebels on several occasions ambushed and looted trucks and boats loaded with relief supplies. In August, rebels from the ex-Sierra Leonean Army faction allied with the RUF took hostage forty-two members of a U.N.-led delegation comprised of ECOMOG, religious leaders, aid workers, and journalists who had gone to the Occra Hills to receive abducted children.

ECOMOG troops, and to a lesser extent members of the civilian militias supporting the government known as the Civil Defense Forces (CDF) and Sierra Leonean Police also committed atrocities. During the January offensive, ECOMOG and government forces routinely executed RUF prisoners and their suspected collaborators or sympathizers. There were at least 180 such executions. Prisoners taken by ECOMOG, some of whom had surrendered and many of whom were wounded, were frequently executed on the spot often with little or no effort to establish their guilt or innocence. Officers to the level of captain were present and participated in the executions. ECOMOG officials have yet to initiate a formal investigation into these killings. Following the January offensive, there were no reports of further ECOMOG executions though there were a few reports of rebel prisoners being executed by members of the CDF.

Around the towns of Bradford and Moyamba, at least one group of Kamajors, the largest and most powerful of the CDF forces, went on looting raids, sometimes posing as rebels, in which several civilians were killed and boats were attacked. There were several civilian deaths reported during clashes between the Mende and Temne tribes around "Mile 91" and Yele, and in chiefdom clashes between rival groups of Kamajors around Moyamba and Yonibana.

All sides in the conflict showed little respect for prisoners of war, with extrajudicial execution following surrender being common. Following the Lom6 peace accord, in which the immediate release of all prisoners of war was mandated, the government showed far better compliance than the RUF. At this writing the government had released 158 prisoners and ECOMOG had released sixty-one. In contrast, at this writing the RUF had only released twenty-nine of the several hundred ECOMOG prisoners they admittedly had in detention. Both the RUF and ECOMOG committed violations of medical neutrality, particularly during the January offensive.

Children continued to be subjected to all forms of violence and to be recruited as combatants by both rebel forces and the CDF. Following the signing of the accord, the CDF had, as of October, demobilized over one hundred and registered hundreds more for eventual demobilization. While the RUF had admitted that approximately 30 percent of their forces are under eighteen no official demobilization had taken place.

The situation for the some 480,000 Sierra Leoneans living as refugees in Guinea and Liberia deteriorated during the year. Following several cross border attacks by the RUF on Guinean villages and towns in March, April and May, Guinean authorities reacted by harassing, detaining, and in some cases deporting Sierra Leonean refugees they accused of being rebels or sympathizers. Refugees in Guinea, particularly the some 100,000 living close to the Sierra Leonean border, suffered food shortages and were at risk of cross border attacks. Dozens of refugees were killed or abducted in these attacks.

For the 90,000 Sierra Leonean refugees living in Liberia, the 35,000 living in northern Lofa county became vulnerable to attack by both Liberian insurgents and Liberian security forces when fighting between the two erupted in August. Officials of the United Nations High Commission for Refugees said in September that they would not facilitate the repatriation of Sierra Leonean refugees until the process of disarmament and demobilization of rival forces was completed and security assured. At this writing the United Nations estimated the number of IDP's in Sierra Leone to be over 500,000.

Journalists suffered considerable danger and harassment from all sides. Seven Sierra Leonean and one United States reporter were killed by rebel forces during the January offensive. One journalist was executed by ECOMOG forces in January after being denounced as a rebel collaborator. In April, May and June, at least five journalists were harassed and detained for stories they had written, and in July two journalists were arrested by ECOMOG after it alleged arms and ammunition were found in the offices of a local newspaper. The charges were later dropped.

Defending Human Rights

Numerous nongovernmental human rights organizations operated in Sierra Leone, including Forum of Conscience, Network Movement for Peace and Justice, Campaign for Good Governance, and Prison Watch. In 1997, twenty-seven groups formed a coalition called the National Forum for Human Rights (NFHR). Most of these groups lacked proper funding, expertise, and institutional support. With a few exceptions, their activities focused on human rights education for the public and providing social work services for individuals in both war-related and non-war-related cases. Both because of lack of organization and fear of retribution, the local NGOs were generally reluctant to denounce abuses by or take a stand against abuses by rebels or government. None of them publicly denounced the peace accord's general amnesty. Several local human rights defenders received threats from and were targeted by the RUF during the January offensive.

The governmental National Commission for Democracy and Human Rights (NCDHR), formed in 1996, made significant contributions in human rights education, but it was perceived by the population to be too close to the government and unwilling to openly confront controversial issues. The commission also lacked both the powers to ensure requisite independence, such as the power to subpoena witnesses and to receive documentation, evidence, or records; and the expertise within the areas of documentation, monitoring, and advocacy. It did, however, operate a successful legal aid clinic which mainly addressed violations of economic and social rights unrelated to the war. It was hoped that the "autonomous quasi-judicial national Human Rights Commission" provided for by the Lom6 accord would address some of these deficiencies.

A significant effort to bring about unity and solidarity of purpose among the governmental and nongovernmental Sierra Leonean human rights community had been made by the Human Rights section of United Nations Observer Mission to Sierra Leone (UNOMSIL). This was formalized through the formation of the Human Rights Committee in January 1999 which brought local human rights groups, international NGOs, NCDHR, and U.N. agencies together for information sharing and advocacy.

The Role of the International Community

Sierra Leone's human rights emergency provoked wide condemnation from the international community and served to galvanize diplomatic efforts to bring about a negotiated solution to the eight-year civil war. The U.N., ECOWAS, and OAU, directly facilitated the Lom6 peace agreement, which was also unofficially supported by the British, American, and Nigerian governments. The willingness

of all international parties to the accord to accept the inclusion of a general amnesty stood in sharp contrast with the standards of justice enforced in other conflicts, such as Kosovo and East Timor.

ECOMOG and ECOWAS

At this writing there were approximately 12,000 predominantly Nigerian ECOMOG troops in Sierra Leone, with small Ghanaian and Guinean contingents. The cost of maintaining the troops (allegedly U.S. \$1 million daily) was borne mostly by Nigeria. ECOMOG troops continued to provide security for the country's highways and airports, and in August began working jointly with the Sierra Leonean Police to combat rising crime. In addition to its support for the military role of ECOMOG, ECOWAS foreign ministers, particularly Togolese President Eyadema who, during the peace talks served as ECOWAS chairman, played an important part in brokering the peace talks which culminated in the signing of the Lom6 accord. The accord called for the transformation of ECOMOG's mandate from military intervention to peacekeeping and responsibility for the disarmament and encampment of all ex-combatants. However, ECOWAS states, particularly Nigeria-under considerable domestic pressure to reduce its financial and human commitment to Sierra Leone-demanded that the United Nations either convert the ECOMOG force into a U.N. peace-keeping force or financially support any continued ECOMOG presence. At this writing, the future of ECOMOG in Sierra Leone was unclear.

United Nations

After being forced to evacuate all international members of its mission and having its premises burned during the January offensive, the United Nations Observer Mission to Sierra Leone (UNOMSIL) went on to play a pivotal role in facilitating the Lom6 peace agreement. High profile U.N. visits by Secretary-General Kofi Annan in July, High Commissioner for Human Rights Mary Robinson in June, High Commissioner for Refugees Sadako Ogata in February, and Special Representative for Children in Conflict Olaro Otunnu in September showed the organization's commitment to and helped focus attention on Sierra Leone. The U.N. secretary-general's Special Representative Francis Okelo appended a hand-written disclaimer to the Lom6 accord stating that the U.N. would not recognize the accord's amnesty provision as applying to crimes of genocide, crimes against humanity, war crimes, and other serious violations of human rights and humanitarian law. The U.N. failed to seek a protocol to clarify this disclaimer and the U.N. Security Council did not reaffirm the invalidity of the amnesty's limitations under international law in its resolutions. On October 22, the U.N. Security Council approved the U.N. Mission in Sierra Leone (UNAMSIL). The operation, given an initial six month mandate, authorized the deployment of a 6,000-member U.N. peacekeeping force. UNAMSIL's mandate, under the U.N. Charter's chapter VII, included assisting the disarmament and demobilization process, ensuring the security of U.N. civilian personnel, assisting the delivery of humanitarian aid, and providing support for the new elections.

The human rights section under the UNOMSIL mission was mandated under the July 30 resolution to be expanded to fourteen human rights monitors and to include technical support for the Truth and Reconciliation Commission and the national Human Rights Commission. In August, U.N. consultants carried out assessment missions to Sierra Leone for both institutions and made recommendations to the government which at this writing had yet to be made public. In August, the high commissioner for human rights appointed a consultant to explore the relationship between the TRC and a possible future international commission of inquiry into human rights violations in Sierra Leone.

UNICEF made a significant contribution to the monitoring of children's rights violations, advocacy and care for child victims of war. The United Nations Development Programme continued its support of a human rights education program with the governmental National Commission for Democracy and Human Rights.

The European Union, United Kingdom, and United States

In April the European Union Joint Assembly adopted a resolution condemning the January rebel offensive, atrocities inflicted on the civilian population, and the use of child soldiers. In February, Commissioner for Humanitarian Aid Emma Bonino visited Sierra Leone and called for more humanitarian aid. The E.U. welcomed the signing of the Lom6 accord, and called upon all parties to adhere to the terms of the agreement. Since 1998, the European Commission had given Sierra Leone

more than U.S.\$140 million for development and rehabilitation projects (over five years), providing U.S.\$22 million for emergency assistance for humanitarian assistance in Sierra Leone and for Sierra Leonean refugees in Guinea since the beginning of the year.

Both the United Kingdom and the United States played a significant role in military and political developments. On January 19, the U.K. described the January offensive as "more than a week of looting and anarchy in which the rebels amply demonstrated their brutality which repeatedly has blighted Sierra Leone." The U.S. made a similar statement on March 23 stating that the RUF "has purposely and systematically terrorized and brutalized tens of thousands of innocent civilians as a terror tactic to further its efforts to overthrow a democratically elected government." Both governments continued to publicly advocate for the "dual track" approach, military and negotiation, to end the war. However, particularly after the January offensive, considerable pressure was applied to both the RUF and especially the government of Sierra Leone to seek a negotiated solution. Pressure was also applied, particularly by the U.S., on the governments of Liberia and Burkina Faso to stop providing military action and logistical support to the RUF. The U.S. ambassador to Sierra Leone and a U.K. representative were present in Lomé throughout the two month negotiation process and were influential in directly shaping parts of the agreement. The U.K. also took a leading role in facilitating the Sierra Leone Contact Group formed in November 1998 to bolster international support for Sierra Leone. At this writing the Contact Group had met three times: November 1998 in London, April 1999 in New York, and July 1999 in London.

The U.S. and U.K. continued to be the largest providers of humanitarian assistance to Sierra Leone. The U.S.'s total humanitarian and emergency contribution in 1999, including grants to NGOs and aid agencies, was U.S.\$35.7 million. The U.S. also contributed U.S.\$10 million in aid to ECOMOG in the form of nonlethal logistical assistance. For its part, the U.K., since January, contributed U.S.\$50 million during 1999, including assistance for ECOMOG, training and equipping of the new Sierra Leonean army, and U.S.\$16.5 million for the Disarmament, Demobilization, and Rehabilitation program. British military personnel began training the new Sierra Leonean Army in May and were expected to continue until March 2000. In coordination with the Commonwealth Secretariat, the U.K. provided funds for training and administration of the Sierra Leonean Police, including the provision of the Inspector General.

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